

The complaint

Mr and Mrs C have complained about One Insurance Limited, it provides them with their accidental damage insurance for their home and contents, and it has only offered to partially repair their roof, damaged when Mr C had to walk on it.

What happened

Mr C had cause to walk on a corrugated roof at his property. Unfortunately his foot went through the roof. One Insurance accepted the claim and tested the roof for asbestos. It found it was positive. The roof is made up of panels; One Insurance said only some of the panels were damaged but the roof could not be repaired without removing and replacing all of the asbestos panels. It didn't think it should be liable for the full extent of that work but said it would remove and replace the damaged panels and pay 80% of the cost for removing the undamaged panels (but offered nothing for their replacement).

Mr and Mrs C were dismayed by this – they'd understood that One Insurance would be replacing the whole roof. One Insurance said it had not said that. But offered £100 compensation for any upset Mr and Mrs C had been caused. They complained to us.

Our investigator ultimately upheld this complaint. He told both parties that removing and replacing the whole roof was necessary as a result of the accidental damage which had occurred and which Mr and Mrs C had cover for. He, therefore, felt One Insurance was liable for all of that work.

One Insurance didn't respond to the findings. Mr and Mrs C said they were keen for the matter to be resolved.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

The file submissions show that following the accidental damage to the roof, the roof cannot be repaired by just fixing or replacing only the panels which were damaged. For the damage to be resolved all of the asbestos panels which make up the roof need to be replaced. In other words but for the accidental damage which occurred, none of the panels would need replacing. But it did occur and, in order to resolve that, all of the panels need to be replaced. So replacement of all of the panels is what One Insurance is fairly liable for, meaning its previous offer of part settlement was unfair.

One Insurance has referred to an exclusion in the policy for matching sets. This exclusion wouldn't apply in this scenario anyway because a part repair is not possible. However, the exclusion for matching sets only applies to the contents part of the cover, and this is a buildings claim.

I understand that there is internal damage and some damaged contents yet to be resolved. It will be up to the parties to progress the claim in these respects. If Mr and Mrs C are not

happy with how that occurs, or with any outcome that results, they will be able to make a further complaint.

Putting things right

I require One Insurance to settle Mr and Mrs C's claim for accidental damage, in line with my comments about what equates to fair settlement and the remaining terms and conditions of the policy. For the avoidance of doubt I'm satisfied that fair settlement equates to all of the asbestos panels which make up the roof being removed and replaced.

If One Insurance has not paid it already, the £100 compensation previously offered should be paid to Mr and Mrs C.

My final decision

I uphold this complaint. I require One Insurance Limited to provide the redress set out at "*putting things right*" above.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs C and Mr C to accept or reject my decision before 4 February 2021.

Fiona Robinson

Ombudsman